

Prior to the continued hearing date, Petitioner shall provide notice of the hearing to, and serve the petition on, Phillip Craig and file proof of such notice/service. (Prob. Code § 8110).

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Conservatorship of Earl Dean Pairett

26PR000070

PETITION FOR APPOINTMENT OF PROBATE CONSERVATOR OF THE PERSON AND ESTATE

APPEARANCE REQUIRED

CIVIL LAW & MOTION CALENDAR – Hon. Cynthia P. Smith, Dept. A (Historic Courthouse) at 8:30 a.m.

Jane Doe v. Joseph Tolfree et al

23CV000759

PLAINTIFF JANE DOE’S MOTION TO COMPEL FURTHER DEPOSITION TESTIMONY OF ALYSHA DALEY

TENTATIVE RULING: The matter is VACATED. As Plaintiff Jane Doe acknowledges in her Notice of Motion, this matter has been assigned to a discovery referee for all discovery disputes. The instant motion constitutes a discovery dispute and is, therefore, subject to the Court’s reference. It appears Plaintiff filed the present Notice of Motion and moving and reply papers with the Court due to an understanding that, “[d]espite this [the discovery reference], Plaintiff is required to file all motions, oppositions, and replies with the Napa County Superior Court so that there is a record of the filings on the docket.” (Notice of Motion, 2:4-5.) The Court is aware of no such requirement. The matter is therefore dropped from calendar.

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Mildred Lopez v. Walmart Inc.

25CV002578

[1] DEFENDANT WALMART INC.’S MOTION FOR ORDER COMPELLING PLAINTIFF MILDRED LOPEZ TO PROVIDE VERIFIED RESPONSES TO REQUEST FOR PRODUCTION, SET ONE, AND REQUEST FOR MONETARY SANCTIONS AGAINST RAYMOND GHERMEZIAN, ESQ. AND RAYMOND GHERMEZIAN, APLC

TENTATIVE RULING: The motion is GRANTED. Plaintiff is ordered to serve verified, code-compliant responses without objection to Defendant’s Requests for Production of Documents, Set One, served on February 26, 2026, within 14 calendar days from Notice of Entry of the present ruling. Plaintiff’s counsel is ordered to pay to Defendant, care of its attorney of record, sanctions in the amount of \$810, within 14 calendar days from Notice of Entry of this

ruling. Defendant is ordered to serve and file a Notice of Entry of Order containing the present ruling.

The moving party failed to include in the notice of this motion proper notice of the Court's tentative ruling system as required by Local Rule 2.9. Moving party is directed to immediately provide, by telephone call AND email, the missing notice to opposing party/ies forthwith. The requirements for requesting oral argument under Local Rule 2.9 remain in effect. However, the Court may grant belated requests for oral argument or continuance of hearing, made by any party who represents it did not timely receive the required notice, regardless of whether or not moving party is present at the hearing.

Defendant Walmart Inc. ("Defendant") moves, pursuant to Code of Civil Procedure section 2031.300, subdivision (b),¹ for an order compelling Plaintiff Mildred Lopez ("Plaintiff") to provide full and complete verified responses, without objections, to Defendant's Requests for Production of Documents, Set One, served on February 26, 2026 within 14 days of this Order. Additionally, Defendant seeks monetary sanctions, pursuant to 2023.030, and 2031.300, subdivision (c), against Plaintiff's counsel, Raymond Ghermezian, Esq. and Raymond Ghermezian, a Professional Law Corporation, in the total amount of \$810.00, jointly and severally, in order to compensate Defendant for the time and expense of bringing this discovery motion.

If a party to whom requests for production of documents were directed fails to serve a timely response, the responding party waives all objections and the propounding party may move for an order compelling responses and for a monetary sanction. (§ 2031.300, subds. (a)-(c).) All that need be shown in the moving papers is that a request for production was properly served on the opposing party, that the time to respond has expired, and that no response of any kind has been served. (Weil & Brown, Cal. Practice Guide, Civ. Proc. Before Trial (The Rutter Group 2022), Ch. 8F, § 8:1140, p. 8F-59, citing *Leach v. Superior Court* (1980) 111 Cal.App.3d 902, 905-06.) The moving party is not required to show a "reasonable and good faith attempt" to resolve the matter informally with opposing counsel before filing the motion. (Code Civ. Proc., § 2030.290; *Sinaiko Healthcare Consulting, Inc. v. Pacific Healthcare Consultants*, (2007) 148 Cal.App.4th 390, 411.)

Defendant submits evidence demonstrating that the discovery was properly propounded and timely responses were not served. (Declaration of Eric J. Palmer ("Palmer Decl.") at ¶¶ 4-7, Exh. A.) Thus, Plaintiff shall serve verified code-compliant responses, without objections, within 14 calendar days of service of notice of entry of order. (§ 2031.300, subds. (a)-(b).)

"The court shall impose a monetary sanction . . . against any party, person, or attorney who unsuccessfully . . . opposes a motion to compel a response to a demand for inspection, copying, testing, or sampling, unless it finds that the one subject to the sanction acted with substantial justification or that other circumstances make the imposition of the sanction unjust." (§ 2031.300, subd. (c).) Moreover, "[t]he court may award sanctions under the Discovery Act in favor of a party who files a motion to compel discovery, even though no opposition to the motion was filed." (Rules of Court, rule 3.1348, subd. (a).)

¹ All subsequent statutory references are to the Code of Civil Procedure unless otherwise specified.

The Court finds neither that Plaintiff acted with substantial justification nor that other circumstances make imposition of sanctions unjust, as Plaintiff has failed to file an opposition to the motion. Based on the foregoing, Defendant's request for sanctions as against Plaintiff's counsel is GRANTED. A court may impose sanctions against an attorney only if the attorney advised the client to engage in the improper conduct. (*Kwan Software Eng'g, Inc. v Hennings* (2020) 58 Cal.App.5th 57, 81, 85.) Whether the attorney gave such advice is known only to the attorney and his client and therefore the attorney has the burden of proving he gave no such advice. (*Cornerstone Realty Advisors, LLC v. Summit Healthcare REIT, Inc.* (2020) 56 Cal.App.5th 771, 799-804.) Here, Plaintiff's counsel provides no evidence that he did not advise his client to fail to comply with Plaintiff's discovery obligations. As such, sanctions against Plaintiff's counsel is permitted.

Plaintiff's counsel is ordered to pay to Defendant within 14 calendar days of notice of entry of this order, sanctions in the amount of \$810.

[2] DEFENDANT WALMART INC.'S MOTION FOR ORDER DEEMING ADMITED THE TRUTH OF FACTS AND REQUEST FOR MONETARY SANCTIONS AGAINST RAYMOND GHERMEZIAN, ESQ. AND RAYMOND GHERMEZIAN, APLC

TENTATIVE RULING: The motion is GRANTED. Plaintiff's counsel is ordered to pay to Defendant within 14 calendar days of notice of entry of this order, sanctions in the amount of \$935. Defendant is ordered to serve and file a Notice of Entry of Order containing the present ruling.

The moving party failed to include in the notice of this motion proper notice of the Court's tentative ruling system as required by Local Rule 2.9. Moving party is directed to immediately provide, by telephone call AND email, the missing notice to opposing party/ies forthwith. The requirements for requesting oral argument under Local Rule 2.9 remain in effect. However, the Court may grant belated requests for oral argument or continuance of hearing, made by any party who represents it did not timely receive the required notice, regardless of whether or not moving party is present at the hearing.

Defendant Walmart Inc. ("Defendant") moves, pursuant to Code of Civil Procedure section 2033.280, subdivision (b) and (c),² for an order that the truth of all specified matters set forth in Defendant's Requests for Admission, Set One, served on February 26, 2026, on Plaintiff Mildred Lopez ("Plaintiff") be deemed admitted. Additionally, Defendant seeks monetary sanctions, pursuant to sections 2023.010 and 2023.030, against Plaintiff's counsel, Raymond Ghermezian, Esq. and Raymond Ghermezian, a Professional Law Corporation, in the total amount of \$935.00, jointly and severally, in order to compensate Defendant for the time and expense of bringing this discovery motion.

"If a party to whom requests for admission are directed fails to serve a timely response, . . . [t]he requesting party may move for an order that the genuineness of any documents and the

² All subsequent statutory references are to the Code of Civil Procedure unless otherwise specified.

truth of any matters specified in the requests be deemed admitted.” (§ 2033.280, subd. (b).) “The court shall make this order, unless it finds that the party to whom the requests for admission have been directed has served, before the hearing on the motion, a proposed response to the requests for admission that is in substantial compliance with Section 2033.220.” (§ 2033.280, subd. (c).)

Defendant submits evidence demonstrating that the discovery was properly propounded and timely responses were not served. (Declaration of Eric J. Palmer (“Palmer Decl.”), ¶¶ 4-7, Exh. A.) As such, the Court orders that the genuineness of the documents and the truth of the matters specified in the RFAs are deemed admitted.

“It is mandatory that the court impose a monetary sanction . . . on the party or attorney, or both, whose failure to serve a timely response to requests for admission necessitated this motion.” (§ 2033.280, subd. (c).) Moreover, “[t]he court may award sanctions under the Discovery Act in favor of a party who files a motion to compel discovery, even though no opposition to the motion was filed.” (Rules of Court, rule 3.1348, subd. (a).)

Based on the foregoing, Defendant’s request for sanctions as against Plaintiff’s counsel is GRANTED. Plaintiff’s counsel provides no evidence that he did not advise his client to fail to comply with Plaintiff’s discovery obligations. As such, sanctions against Plaintiff’s counsel is permitted. (See *Kwan Software Eng’g, Inc. v Hennings* (2020) 58 Cal.App.5th 57, 81, 85; *Cornerstone Realty Advisors, LLC v. Summit Healthcare REIT, Inc.* (2020) 56 Cal.App.5th 771, 799-804.)

Plaintiff’s counsel is ordered to pay to Defendant within 14 calendar days of notice of entry of this order, sanctions in the amount of \$935.

[3] DEFENDANT WALMART INC.’S MOTION FOR ORDER COMPELLING PLAINTIFF MILDRED LOPEZ TO PROVIDE VERIFIED RESPONSES TO SPECIAL INTERROGATORIES, SET ONE, AND REQUEST FOR MONETARY SANCTIONS AGAINST RAYMOND GHERMEZIAN, ESQ. AND RAYMOND GHERMEZIAN, APLC

TENTATIVE RULING: The motion is GRANTED. Plaintiff is ordered to serve verified, code-compliant responses without objection to Defendant’s Special Interrogatories, Set One, served on February 26, 2026, within 14 calendar days from Notice of Entry of the present ruling. Plaintiff’s counsel is ordered to pay to Defendant within 14 calendar days of notice of entry of this order, sanctions in the amount of \$1,185.00. Defendant is ordered to serve and file a Notice of Entry of Order containing the present ruling.

The moving party failed to include in the notice of this motion proper notice of the Court’s tentative ruling system as required by Local Rule 2.9. Moving party is directed to immediately provide, by telephone call AND email, the missing notice to opposing party/ies forthwith. The requirements for requesting oral argument under Local Rule 2.9 remain in effect. However, the Court may grant belated requests for oral argument or continuance of hearing, made by any party who represents it did not timely receive the required notice, regardless of whether or not moving party is present at the hearing.

Defendant Walmart Inc. (“Defendant”) moves, pursuant to Code of Civil Procedure sections 2030.290,³ for an order compelling Plaintiff Mildred Lopez (“Plaintiff”) to provide full and complete verified responses, without objections, to Defendant’s Special Interrogatories, Set One, served on February 26, 2026 within 14 days of this order. Additionally, Defendant seeks monetary sanctions, pursuant to sections 2030.030 and 2030.290, subdivision (c), against Plaintiff’s counsel, Raymond Ghermezian, Esq. and Raymond Ghermezian, a Professional Law Corporation, in the total amount of \$1,185.00, jointly and severally, in order to compensate Defendant for the time and expense of bringing this discovery motion.

If a party to whom interrogatories were directed fails to serve a timely response, the responding party waives all objections and the propounding party may move for an order compelling responses and for a monetary sanction. (§ 2030.290, subds. (a)-(c).) All that need be shown in the moving papers is that a set of interrogatories was properly served on the opposing party, that the time to respond has expired, and that no response of any kind has been served. (Weil & Brown, Cal. Practice Guide, Civ. Proc. Before Trial (The Rutter Group 2022), Ch. 8F, § 8:1140, p. 8F-59, citing *Leach v. Superior Court* (1980) 111 Cal.App.3d 902, 905-06.) The moving party is not required to show a “reasonable and good faith attempt” to resolve the matter informally with opposing counsel before filing the motion. (§ 2030.290; *Sinaiko Healthcare Consulting, Inc. v. Pacific Healthcare Consultants*, (2007) 148 Cal.App.4th 390, 411.)

Defendant submits evidence demonstrating that the discovery was properly propounded and timely responses were not served. (Declaration of Eric J. Palmer (“Palmer Decl.”), ¶¶ 4-7, Exh. A.) Thus, Plaintiff shall serve verified code-compliant responses, without objections, within 14 calendar days of service of notice of entry of order. (§ 2030.290, subds. (a)-(b).)

“The court shall impose a monetary sanction . . . against any party, person, or attorney who unsuccessfully . . . opposes a motion to compel a response to interrogatories, unless it finds that the one subject to the sanction acted with substantial justification or that other circumstances make the imposition of the sanction unjust.” (§ 2030.290, subd. (c).) Moreover, “[t]he court may award sanctions under the Discovery Act in favor of a party who files a motion to compel discovery, even though no opposition to the motion was filed.” (Rules of Court, rule 3.1348, subd. (a).)

The Court finds neither that Plaintiff acted with substantial justification nor that other circumstances make imposition of sanctions unjust, as Plaintiff has failed to file an opposition to the motion. Based on the foregoing, Defendant’s request for sanctions as against Plaintiff’s counsel is GRANTED. Plaintiff’s counsel provides no evidence that he did not advise his client to fail to comply with Plaintiff’s discovery obligations. As such, sanctions against Plaintiff’s counsel is permitted. (See *Kwan Software Eng’g, Inc. v Hennings* (2020) 58 Cal.App.5th 57, 81, 85; *Cornerstone Realty Advisors, LLC v. Summit Healthcare REIT, Inc.* (2020) 56 Cal.App.5th 771, 799-804.)

Plaintiff’s counsel is ordered to pay to Defendant within 14 calendar days of notice of entry of this order, sanctions in the amount of \$1,185.00.

³ All subsequent statutory references are to the Code of Civil Procedure unless otherwise specified.

[4] DEFENDANT WALMART INC.’S MOTION FOR ORDER COMPELLING PLAINTIFF MILDRED LOPEZ TO PROVIDE VERIFIED RESPONSES TO FORM INTERROGATORIES, SET ONE, AND REQUEST FOR MONETARY SANCTIONS AGAINST RAYMOND GHERMEZIAN, ESQ. AND RAYMOND GHERMEZIAN, APLC

TENTATIVE RULING: The motion is GRANTED. Plaintiff is ordered to serve verified, code-compliant responses without objection to Defendant’s Special Interrogatories, Set One, served on February 26, 2026, within 14 calendar days from Notice of Entry of the present ruling. Plaintiff’s counsel is ordered to pay to Defendant within 14 calendar days of notice of entry of this order, sanctions in the amount of \$560. Defendant is ordered to serve and file a Notice of Entry of Order containing the present ruling.

The moving party failed to include in the notice of this motion proper notice of the Court’s tentative ruling system as required by Local Rule 2.9. Moving party is directed to immediately provide, by telephone call AND email, the missing notice to opposing party/ies forthwith. The requirements for requesting oral argument under Local Rule 2.9 remain in effect. However, the Court may grant belated requests for oral argument or continuance of hearing, made by any party who represents it did not timely receive the required notice, regardless of whether or not moving party is present at the hearing.

Defendant Walmart Inc. (“Defendant”) moves, pursuant to Code of Civil Procedure section 2030.290,⁴ for an order compelling Plaintiff Mildred Lopez (“Plaintiff”) to provide full and complete verified responses, without objections, to Defendant’s Form Interrogatories, Set One, served on February 26, 2026, within 14 days of this Order. Additionally, Defendant seeks monetary sanctions, pursuant to sections 2030.030 and 2030.290, subdivision (c), against Plaintiff’s counsel, Raymond Ghermezian, Esq. and Raymond Ghermezian, A Professional Law Corporation, in the total amount of \$560.00, jointly and severally, in order to compensate Defendant for the time and expense of bringing this discovery motion.

If a party to whom interrogatories were directed fails to serve a timely response, the responding party waives all objections and the propounding party may move for an order compelling responses and for a monetary sanction. (§ 2030.290, subds. (a)-(c).) All that need be shown in the moving papers is that a set of interrogatories was properly served on the opposing party, that the time to respond has expired, and that no response of any kind has been served. (Weil & Brown, Cal. Practice Guide, Civ. Proc. Before Trial (The Rutter Group 2022), Ch. 8F, § 8:1140, p. 8F-59, citing *Leach v. Superior Court* (1980) 111 Cal.App.3d 902, 905-06.) The moving party is not required to show a “reasonable and good faith attempt” to resolve the matter informally with opposing counsel before filing the motion. (§ 2030.290; *Sinaiko Healthcare Consulting, Inc. v. Pacific Healthcare Consultants*, (2007) 148 Cal.App.4th 390, 411.)

Defendant submits evidence demonstrating that the discovery was properly propounded and timely responses were not served. (Declaration of Eric J. Palmer (“Palmer Decl.”), ¶¶ 4-7,

⁴ All subsequent statutory references are to the Code of Civil Procedure unless otherwise specified.

Exh. A.) Thus, Plaintiff shall serve verified code-compliant responses, without objections, within 14 calendar days of service of notice of entry of order. (§ 2030.290, subds. (a)-(b).)

“The court shall impose a monetary sanction . . . against any party, person, or attorney who unsuccessfully . . . opposes a motion to compel a response to interrogatories, unless it finds that the one subject to the sanction acted with substantial justification or that other circumstances make the imposition of the sanction unjust.” (§ 2030.290, subd. (c).) Moreover, “[t]he court may award sanctions under the Discovery Act in favor of a party who files a motion to compel discovery, even though no opposition to the motion was filed.” (Rules of Court, rule 3.1348, subd. (a).)

The Court finds neither that Plaintiff acted with substantial justification nor that other circumstances make imposition of sanctions unjust, as Plaintiff has failed to file an opposition to the motion. Based on the foregoing, Defendant’s request for sanctions as against Plaintiff’s counsel is GRANTED. Plaintiff’s counsel provides no evidence that he did not advise his client to fail to comply with Plaintiff’s discovery obligations. As such, sanctions against Plaintiff’s counsel is permitted. (See *Kwan Software Eng’g, Inc. v Hennings* (2020) 58 Cal.App.5th 57, 81, 85; *Cornerstone Realty Advisors, LLC v. Summit Healthcare REIT, Inc.* (2020) 56 Cal.App.5th 771, 799-804.)

Plaintiff’s counsel is ordered to pay to Defendant within 14 calendar days of notice of entry of this order, sanctions in the amount of \$560.